Open Data Guidelines

Document No: CDO-006
Published: August 28, 2025
Issued by: Chief Data Officer

1.0 Purpose

The purpose of the Open Data Guidelines is to establish a framework for identifying, prioritizing, and managing the publication of data sets[1] across State of Hawaii agencies. Developed in accordance with Hawaii Revised Statutes (HRS) sections 27-44 and 27-44.3,[2] the Open Data Guidelines provide guidelines for data governance, data stewardship, and the procedures for making public data[3] available on the State's Open Data portal at opendata.hawaii.gov or successor website designated by the Chief Information Officer.

Technical requirements referenced in HRS section 27-44.3, including machine-readable[4] format specifications, metadata, and web publishing protocols, are outlined in a separate document titled the *State of Hawaii Open Data Technical Guidelines*. This separation ensures that the Open Data Guidelines and technical specifications are easily understood and referenced for better implementation.

2.0 Authority

HRS section 27-44,[5] established within the Office of Enterprise Technology Services, Department of Accounting and General Services, under the authority of the Chief Information Officer, the Chief Data Officer to develop, implement, and manage statewide data policies, procedures, standards, and guidelines. HRS section 27-44 also established a Data Task Force to assist the Chief Data Officer in developing the State's data policies, procedures, and standards.

[1] Refer to 7.0 Definitions of Key Terms.
[2] HRS § 27.44 capitol.hawaii.gov and § 27-44.3 capitol.hawaii.gov.
[3] Refer to 7.0 Definitions of Key Terms.
[4] Refer to 7.0 Definitions of Key Terms.
[5] HRS § 27-44. https://www.capitol.hawaii.gov/hrscurrent/Vol01_Ch0001-0042F/HRS0027/HRS_0027-0044.htm.

3.0 Scope

3.1 State Agencies

The Open Data Guidelines apply to all State agencies as outlined in section 27-44, HRS:

"(c) Each department shall update its electronic data sets in the manner prescribed by the chief data officer and as often as is necessary to preserve the integrity and usefulness of the data sets to the extent that the department regularly maintains or updates the data sets."

3.2 Covered Use

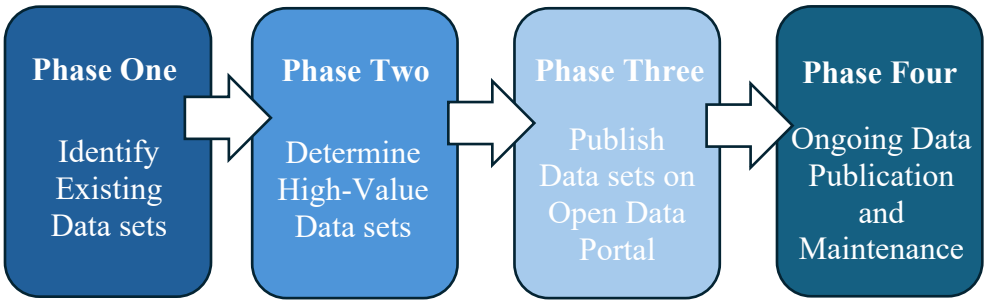
The Open Data Guidelines apply to all data assets handled by the State agencies categorized as Open Data.[6] Open Data Guidelines apply to all data sets published on the State's Open Data portal at opendata.hawaii.gov.

4.0 Information Statement

4.1 Requirements of the Open Data Guidelines

To enhance transparency, accessibility, and usability of statewide data, State agencies are encouraged to publish high-value[7] data sets on the State's Open Data platform, at opendata.hawaii.gov.

To publish open data sets on the opendata.hawaii.gov site, it is recommended to follow the phases outlined below.



4.1.1 Identify Existing Data Sets

Conduct an assessment to identify data sets published on the State agency websites

[6] Refer to 7.0 Definitions of Key Terms.
[7] Refer to 7.0 Definitions of Key Terms.

unavailable on the State's Open Data platform, opendata.hawaii.gov.

4.1.2 Determine Value of Data Sets

Assess identified data sets to determine its value. To determine whether a data set is considered high value, evaluate it against the following criteria and questions:

- Public Impact - Does the data set contribute to transparency or improving public trust? How often is it accessed or downloaded by the public?
- Economic Value - Does the data set provide insights that can drive economic development, innovation, business creation? Are businesses or researchers leveraging this data for new products or services?
- Social Impact - Does the data set support decision-making in critical areas such as healthcare, education, housing? Can it inform policy to address societal challenges (i.e. homelessness, climate change)?
- Operational Impact for Government - Does the data set improve internal operations, decision-making, or service delivery? Is it frequently used across multiple government agencies or sectors?

4.1.3 Publish High-Value Data Sets on Open Data Portal

Publish high-value data sets from state agency websites to the State's Open Data platform.

4.1.4 Update Regularly

State agencies establish a regular update schedule for data sets published on opendata.hawaii.gov to ensure data remains accurate and up to date.

4.2 Ownership and Responsibility

4.2.1 Ownership

State agencies retain ownership over the Open Data set(s) published at opendata.hawaii.gov. All datasets published on opendata.hawaii.gov are public resources, accessible to anyone with an Internet connection.

The public use of the Open Data set(s) may include development of applications. In this case, the developers retain all intellectual property ownership in their applications, excluding the State data itself, whose ownership continues to reside with the State agency.

4.2.2 Responsibility

State agencies that own the Open Data set(s) are responsible for all aspects of quality, integrity, and security of the data set contents. State agencies do not relinquish control of its data to the Chief Data Office when the data set is submitted for publication at opendata.hawaii.gov.

State agencies are responsible for ensuring that their submitted data meets the criteria of Open Data as outlined in the next section and has been appropriately reviewed by the Office of Information Practices if needed. If a data set is not publishable in its raw format, State agencies are responsible for identifying what processing can occur to make the data publishable. State agencies are responsible for maintaining and regularly updating data sets published at opendata.hawaii.gov.

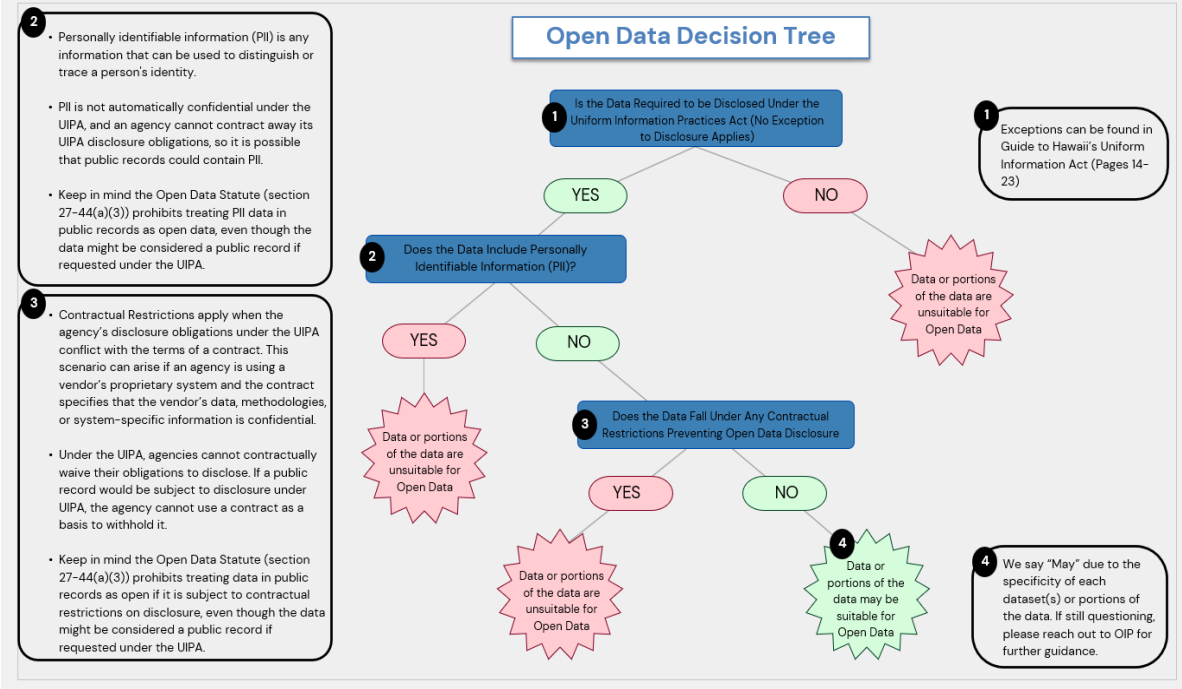
4.2.3 Open Data Quality

Open Data sets should adhere to recommended data quality guidelines to ensure that accurate and reliable data is accessible to the public.

4.3 Identifying Publishable Data

In accordance with section 27-44.3, HRS, these Open Data Guidelines include processes to determine data sets that are appropriate for online disclosure. As reviewed by the Office of Information Practices, the graphic and steps outlined below can be followed to make the appropriate determinations. Final determination should always be made in consultation with the Office of Information Practices.[8]

[8] Office of Information Practices, https://oip.hawaii.gov/.



4.3.1: Is the Data Required to be Disclosed Under the Uniform Information Practices Act (UIPA)?[9]

Yes → Go to Step 2.

No → Data or portions of the data are unsuitable for Open Data.

4.3.2: Does the Data Include Personally Identifiable Information (PII)?

Yes → Data or portions of the data are unsuitable for Open Data.

No → Go to Step 3.

Considerations:

- Personally identifiable information (PII) is any information that can be used to distinguish or trace a person's identity.

[9] Hawaii Uniform Information Practices Act: https://oip.hawaii.gov/wp-content/uploads/2024/08/August-2024-UIPA-Manual-Final.pdf.

- HRS section 27-44.3[10] **prohibits** treating PII data in public records as Open Data, even though the record might be considered a public record if requested under the UIPA.

4.3.3: Does the Agency Have Contractual Restrictions that Prevent Open Data Disclosure?

Yes → Data or portions of the data are unsuitable for Open Data.

No → Data or portions of the data may be suitable for Open Data.

Considerations:

- Contractual restrictions apply when the agency's disclosure obligations under the UIPA conflict with the terms of a contract. This scenario can arise if an agency is using a vendor's proprietary system and the contract specifies that the vendor's data, methodologies, or system-specific information is confidential.
- Under the UIPA, agencies cannot contractually waive their obligations to disclose. If a public record would be subject to disclosure under UIPA, the agency cannot use a contract as a basis to withhold it.

5.0 Compliance

The Open Data Guidelines shall take effect upon publication. Compliance is strongly recommended.

6.0 Contact Information

Submit all inquiries and requests for future enhancements to the Chief Data Officer, Office of Enterprise Technology Services, Department of Accounting and General Services, at data@hawaii.gov.

Additional data related Guidelines can be found at data.hawaii.gov.

[10] HRS: § 27-44.3. https://www.capitol.hawaii.gov/hrscurrent/Vol01_Ch0001-0042F/HRS0027/HRS_0027-0044_0003.htm.

7.0 Definitions of Key Terms

Definitions have been taken from the State's Open Data portal, opendata.hawaii.gov, or defined by other Open Data documents as listed in the related documents and sources section of the Open Data Guidelines.

- **Data:** Means final versions of statistical or factual information:
    - Alphanumeric form reflected in a list, table, graph, chart, or other non-narrative form, that can be digitally transmitted or processed; and
    - Regularly created or maintained by or on behalf of and owned by a department that records a measurement, transaction, or determination related to the mission of that executive branch department.[11]
- **Data set:** Means a named collection of related records on an electronic storage device, with the collection containing individual data units organized or formatted in a specific and prescribed way, often in tabular form, and accessed by a specific access method that is based on the data set organization; provided that a data set shall not include any data that is protected from disclosure under applicable federal or state law, or contract, or data that is proprietary.[12]
- **High-value data:** Data qualifies as high-value if it can be used to increase agency accountability and responsiveness; improve public knowledge of the agency and its operations; further the core mission of the agency; create economic opportunity; or respond to need and demand as identified through public consultation.[13]
- **Machine-readable:** Refers to information or data that is in a format that can be easily processed by a computer without human intervention while ensuring no semantic meaning is lost.[14]
- **Open data:** Refers to publicly available data structured in a way that enables the data to be fully discoverable and usable by end users.[15]

8.0 Revision History

Date	Description of Change
December 8, 2024	Reviewed and approved by Data Task Force
August 27, 2025	Reviewed and approved by AG/OIMT

[11] Act 263 SLH 2013: https://www.capitol.hawaii.gov/sessions/session2013/bills/HB632_CD1_.pdf.
[12] Act 263 SLH 2013: https://www.capitol.hawaii.gov/sessions/session2013/bills/HB632_CD1_.pdf.
[13] The U.S. National Archives and Records Administration: archives.gov.
[14] Federal Enterprise Data Resources: Resources.data.gov.
[15] Executive Office of the President: https://www.whitehouse.gov/wp-content/uploads/legacy_drupal_files/omb/memoranda/2013/m-13-13.pdf.

9.0 Related Documents and Sources

The State of Hawaii Open Data Guidelines utilizes input from several city, state and federal Open Data resources.

[1]. Act 167 SLH 2022. https://www.capitol.hawaii.gov/session/archives/measure_indiv_Archives.aspx?billtype=HB&billnumber=1885&year=2022.

[2]. Act 263 SLH 2013. https://www.capitol.hawaii.gov/session/archives/measure_indiv_Archives.aspx?billtype=HB&billnumber=632&year=2013.

[3] Hawaii Senate Resolution 69. https://www.capitol.hawaii.gov/sessions/session2024/bills/SR69_.pdf.

[4] Hawaii Uniform Information Practices Act. https://oip.hawaii.gov/wp-content/uploads/2024/08/August-2024-UIPA-Manual-Final.pdf.

[5]. Open Data Policy and Technical Standards Manual for the City and County of Honolulu. https://data.honolulu.gov/dataset/Open-Data-Policy-and-Technical-Standards-Manual-fo/uuax-nfka/about_data.

[6]. Open Government Data.gov. https://data.gov/open-gov/#:~:text=The%20OPEN%20Government%20Data%20Act%20makes%20Data.gov%20a%20requirement,in%20the%20Data.gov%20catalog.